

SENATE BILL 2712

By Stevens

AN ACT to amend the private acts of Obion County, relative to the county highway department.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. For the purpose of providing an efficient system of roads, highways, and bridges and the building, construction, reconstruction, maintenance and repair of roads, highways, and bridges in Obion County, Tennessee, the office of County Road Superintendent is hereby created. The County Road Superintendent shall be deemed to be the chief administrative officer of the highway department, which builds and maintains the roads of the county in accordance with the County Uniform Highway Law, codified at Tennessee Code Annotated, Title 54, Chapter 7, Parts 1 and 2, as amended from time to time.

SECTION 2. The County Road Superintendent in office on the effective date of this act shall continue to serve until the expiration of the superintendent's term. After the expiration of the current County Road Superintendent's term, the County Road Superintendent shall be selected by a majority vote of the entire membership of the county legislative body for a term of four (4) years, commencing July 1, 2027, and every four (4) years thereafter. The County Road Superintendent shall have the qualifications, term of office, duties, powers, authority and minimum compensation as provided by the Tennessee County Uniform Highway Law currently and as such law might be amended in the future, and shall be subject to the same limitations, conditions, prohibitions and punishments as provided in the Tennessee County Uniform Highway Law, now and in the future.

SECTION 3. The County Road Superintendent shall be the purchasing agent for the highway department and as such is responsible for all purchases of the department, for proposing a budget for the department, and for maintaining the inventory of the department. In performing these duties, the County Road Superintendent shall conform to all appropriate

provisions of state law, including the Tennessee County Uniform Highway Law, and to appropriate local acts or resolutions. Should Obion County in the future adopt some form of centralized purchasing pursuant to a local option general law or private act, the provisions of this act as they relate to purchasing by the highway department shall be superseded by such act.

SECTION 4. The county Road Superintendent shall have the authority to make expenditures from the highway fund and to issue warrants drawn against the road fund of Obion County under his signature. A second signature from that of the County Mayor is also required. All expenditures shall conform to the budget of the Obion County Highway Department as approved by the County Legislative Body.

SECTION 5. The Obion County Legislative Body may, in accordance with its own bylaws and rules, establish an advisory committee of the County Legislative Body to provide recommendations to the County Road Superintendent on the needs of the county.

SECTION 6. All laws or parts of laws in conflict herewith are hereby repealed. If any provision of this or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end the provisions of this act are declared to be severable.

SECTION 7. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Obion County. Its approval or non-approval shall be proclaimed by the presiding officer of the county legislative body and certified to the Secretary of State.

SECTION 8. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 7.